

d) The information Convera holds may be accessed by Convera and its affiliates including but not limited to any authorised Convera third party service provider for any of the purposes set out in this clause 11 or for other purposes to which the Client has agreed. The Client has a right to ask Convera to see and get a copy of the Client's information, which Convera may charge a small fee for. The Client can also correct, erase or limit Convera use of the Client's information which is incomplete, inaccurate or out-of-date. The Client may object at any time on legitimate reasons to the use of the Client's information, where the processing is not required to complete the Service, or 'required by law or regulation. If the Client wishes to exercise these rights or no longer wishes to receive commercial communications from Convera, please contact Convera by emailing: privacymatters@convera.com or alternatively by writing to the address: Attention: Privacy Officer, Convera, 77 Robinson Road #35-01, Robinson 77, Singapore 068896.

11.4 Information for the Services. The Client acknowledges that for Convera to perform any of the Services, it is necessary for the Client to provide certain information to Convera, such as the Client's banking details, transaction currencies, amounts or any other information related to the payment, the transactions and/or the Client ("**Confidential Client Information**"). The Confidential Client Information does not include information that is or has become publicly known, has been independently developed by Convera without use of any of the Confidential Client Information, or is received from a third party who has no obligation of confidentiality with respect to such information.

11.5 Use of Client Information. Convera will not disclose, sell or otherwise transfer Confidential Client Information to any third party other than its contractors, business partners, affiliated entities and financial institutions, provided, however, that Convera will have the right to disclose such information to any third party if such disclosure is required by applicable law or regulation.

11.6 Payee Data. Convera, at times and in its sole discretion, may, contact any Payee to effectuate the delivery and provision of the Services, including, but not limited to, the ongoing maintenance of Payee details (e.g., bank account information, routing number and contact details) ("**Payee Data**"). Nothing in this Agreement is intended to or should be construed to:

- a) preclude, restrict or prevent Convera from establishing or maintaining with any Payee a commercial relationship that is separate and distinct from the Services provided to the Client; or
- b) relieve the Client of its responsibility to ensure the accuracy of all Payee Data contained in any Instruction.

The Client further acknowledges that Convera already holds and maintains Payee Data for an extensive compilation of Payees and, therefore, the Client's right to any particular Payee Data will not be exclusive. Convera agrees that any Payee Data received from the Client will not be disclosed to any third party, except as necessary to deliver the Services, for Convera own business purposes, including, but not limited to conducting surveys to ascertain Payee satisfaction with the Services, marketing the Services to any Payee or as otherwise contemplated under this Agreement.

12. Indemnification; Limitation of Liability and Exclusion of Warranties

12.1 Client Indemnity. The Client agrees to indemnify and hold Convera and any other Convera Group Company harmless for any damages, losses, costs and expenses incurred by any of them in connection with any Instruction made by the Client or Convera actions in response to receiving an Instruction from the Client (including losses relating to the disposal or reuse of any foreign currency acquired or made available by a Convera Group Company) together with interest (calculated in accordance with clause 8.1) until the date of payment, unless such damages, losses, costs and expenses are caused by gross negligence or intentional misconduct of Convera or any other Convera Group Company. Where applicable, Convera holds the benefit of this indemnity on trust for itself and each Convera Group Company.

12.3 No Warranties and Information Warranty Exclusion. The Client understands that the Online Payment System and the licence to use and access it is provided on an "as is" basis, to the extent permitted by law, without warranty of any kind, either expressed or implied. Convera does not warrant the accuracy or completeness of the information available through the Online Payment System and disclaims any liability for errors or omissions or interruptions to access. Where Convera cannot exclude any express or implied condition or warranty, it limits its liability to the: